

		Defendant also argues that <i>Bus. & Prof. Code §16600.1</i> and <i>§16600.5</i> do not apply to the claims of individual plaintiffs who signed the relevant agreements prior to 1/1/24. But under <i>§16600.5(a)</i>, any “contract that is void under this chapter is unenforceable regardless of where and when the contract was signed.” In addition, Defendant is alleged to have violated <i>§16600.5</i> through conduct occurring after 1/1/24. (FAC ¶¶ 37, 42, 43.) Defendant also argues that claims asserted here by the individual Plaintiffs should have been asserted as compulsory counterclaims in Arizona, if the claim arises out of the transaction or occurrence that is the subject matter of the opposing party's claim, and does not require adding another party over whom the court cannot acquire jurisdiction. (ROA 80, at pp. 14-15.) But whether some or all of the individual Plaintiffs are currently parties to an Arizona action brought by Defendant, whether any counterclaim they might present would require inclusion of WCL, and whether the Arizona court could acquire jurisdiction over WCL, are beyond the scope of demurrer. Finally, Defendant argues that <i>Bus. & Prof. Code §16600 et seq.</i> and <i>§17200</i> cannot apply here, because the individual plaintiffs work in and reside in Arizona. However, <i>§16600.5</i> expressly applies “regardless of whether the contract was signed and the employment was maintained outside of California.” In addition, under <i>Bus. & Prof. Code §16600.1(c)</i>, “[a] violation of this section constitutes an act of unfair competition within the meaning of Chapter 5 (commencing with Section 17200).” For purposes of demurrer, Defendant has not established that the claims at issue are nonetheless necessarily barred. The Demurrer is therefore OVERRULED. Defendant is to file its Answer to the FAC within 10 days, and give notice of these rulings.
6.	Ahmad v. Emberson 25-1505471	A) Demurrer Defendant Tom Emberson’s (“Defendant”) demurrer to plaintiffs Maryam Ahmad and Lawrence Waldburger’s (“Plaintiffs” together) First Amended Complaint (“FAC”) is SUSTAINED in part and OVERRULED in part. Overruled as to causes of action (“COA”) nos. 3 and 8. Sustained as to COA no. 6. The court first notes Defendant’s demurrer is improper as it does not correctly identify the COA Defendant is demurring to. The court will proceed on the merits. Defendant demurs COA nos. 3, 6, and 8 due to lack of sufficient facts. (<i>Civ. Proc. Code § 430.10(e)</i>). Defendant also demurs to all COA based on uncertainty as the FAC “implicates” the statute of limitations. 1) <i>Insufficiency of Fact</i> a) COA No. 3 – Negligence Per Se

“ “The negligence per se doctrine is codified in Evidence Code section 669, subdivision (a), under which negligence is presumed if the plaintiff establishes four elements: (1) the defendant violated a statute, ordinance, or regulation; (2) the violation proximately caused death or injury to person or property; (3) the death or injury resulted from an occurrence the nature of which the statute, ordinance, or regulation was designed to prevent; and (4) the person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted.” [Citation.] “The burden is on the proponent of a negligence per se instruction to demonstrate that these elements are met.” “ (Taulbee v. EJ Distribution Corp. (2019) 35 Cal. App. 5th 590, 596.)

Plaintiffs alleged Defendant as a landlord owed a duty pursuant to Civ. Code §§ 1941.1 and 1941.3. (FAC ¶ 13.) Plaintiffs alleged sufficient facts to support violations of Civ. Code § 1941.1 and injuries related thereto. (FAC ¶¶ 20-24, 29-35, 42-43, 39-41, 44-45.) Plaintiffs alleged no facts to support a violation of Civ. Code § 1941.3.

Plaintiffs have pled sufficient facts. The demurrer is **OVERRULED** as to this COA.

b) COA No. 6 – Constructive Eviction

“ “A constructive eviction occurs when the acts or omissions ... of a landlord, or any disturbance or interference with the tenant's possession by the landlord, renders the premises, or a substantial portion thereof, unfit for the purposes for which they were leased, or has the effect of depriving the tenant for a substantial period of time of the beneficial enjoyment or use of the premises.” [Citations.] Abandonment of premises by the tenant within a reasonable time after the wrongful act of the landlord is essential to enable the tenant to claim a constructive eviction [Citation.] Failure to repair and keep the premises in a condition suitable for the purposes for which they were leased has been held to constitute eviction.” (Stoiber v. Honeychuck (1980) 101 Cal. App. 3d 903, 925-26.)

Plaintiffs alleged Defendant's failure to repair dangerous and uninhabitable conditions substantially interfered with Plaintiffs' ability to safely and reasonably reside in the Property. (FAC ¶ 112.) The conditions rendered the Property unfit for occupancy and Plaintiffs were forced to vacate the Property on 2/10/26. (FAC ¶¶ 113-114.) However, Plaintiffs also alleged Defendant filed an unlawful detainer action in which Defendant received a judgment and Plaintiffs were evicted from the Property pursuant to the judgment on 02/10/26. (FAC ¶¶ 55-57.) Eviction through legal court order is not the same as Plaintiffs being forced to vacate the Property due to it being unfit.

Plaintiffs have not pled sufficient facts, and the demurrer is **SUSTAINED** with leave to amend as to this COA.

c) COA No. 8 – Intentional Infliction of Emotional Distress

The elements to a claim for Intentional Infliction of Emotional Distress are, “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct.” (*Hughes v. Pair* (2009) 46 Cal. 4th 1035, 1050.) “Behavior may be considered outrageous if a defendant (1) abuses a relation or position which gives him power to damage the plaintiff's interest; (2) knows the plaintiff is susceptible to injuries through mental distress; or (3) acts intentionally or unreasonably with the recognition that the acts are likely to result in illness through mental distress.” (*Stoiber v. Honeychuck* (1980) 101 Cal. App. 3d 903, 921.)

Plaintiffs alleged Defendant knowingly allowed hazardous and dangerous conditions to persist over an extended period of time and refused to properly repair the issues despite repeated notice. (FAC ¶¶ 17-47; 124.) Defendant also wrongfully withheld, and continues to withhold, Plaintiffs’ personal property after Plaintiffs’ removal from the Property. (FAC ¶¶ 58-62, 124.) Plaintiffs suffered severe emotional distress, including anxiety, stress, disruption to daily life, fear for their safety, and emotional harm associated with unsafe living conditions and the loss and withholding of their property. (FAC ¶¶ 64, 126.)

Plaintiffs have sufficiently pled this COA at least regarding the withholding of Plaintiffs’ property, refusal to return Plaintiffs’ property, and demand for money as a condition for access to the property. Defendant abused his position as owner/landlord of the Property to lock Plaintiffs’ out and prohibit them from accessing/recovering their property. Plaintiffs have not sufficiently pled facts to support this COA regarding the issues related to the Property as there are no allegations Defendant was aware of these issues prior to them occurring and that Defendant had the intention of causing, or reckless disregard of the probability of causing, emotional distress due to the property issues.

The two year statute of limitations period does not bar this COA. (*Civ. Proc. Code § 335.1; Wassmann v. S. Orange Cnty. Cmty. Coll. Dist.* (2018) 24 Cal. App. 5th 825, 853.)

Plaintiffs have pled sufficient facts, and the demurrer is **OVERRULED** as to this COA.

2) Uncertainty – Statute of Limitations

The Complaint states specifics dates of incidents which occurred between 02/03/24 and 03/26/26. As the complaint was filed on 08/22/25, the dates of the identified incidents all fall within the statute of limitations period. While Defendant argues the FAC identifies

ongoing issues that suggest statute of limitations violations, a demurrer cannot be sustained on statute of limitations unless it is clear from the allegations the limitations period has passed, it is not enough that they might be time-barred. (*Comm. for Green Foothills v. Santa Clara Cnty. Bd. of Supervisors* (2010) 48 Cal. 4th 32, 42.)

The demurrer is **OVERRULED** as to the statute of limitations argument.

B) Motion to Strike

Defendant's motion to strike punitive damages is **DENIED**.

Defendant brings this motion pursuant to *Civ. Proc. Code § 436* and *Civ. Code § 3294*. Regarding punitive damages under *Civ. Code § 3294*:

"(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. . ." (*Civ. Code § 3294*.)

It is not sufficient to allege merely that a defendant "acted with oppression, fraud or malice." A plaintiff must allege specific facts showing that defendant's conduct was oppressive. (*Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042; *Anschutz Entertainment Group, Inc. v. Snapp* (2009) 171 Cal.App.4th 598, 643.) There are no allegations of fraud requirements of *Civ. Code § 3294*, so only malice and oppression are relevant.

"'Malice' means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (*Civ. Code § 3294(c)(1)*.)

"'Oppression' means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (*Civ. Code § 3294(c)(2)*.) "Despicable conduct" is conduct that is so "vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 715.)

Although the Property conditions allegations lack a showing of intent by Defendant for those Property conditions to occur, Plaintiffs alleged they repeatedly notified Defendant of the need for repair, which Defendant failed and refused to do, and which permitted the conditions to continue and worsen, resulting in damages to Plaintiffs. (FAC ¶¶ 52-54.) The allegations of intentional refusal to repair the Property, which resulted in damages to Plaintiffs, support both the malice and oppression prongs. Further, the allegations regarding Defendant keeping Plaintiffs' personal property and refusing Plaintiffs access to

		their personal property without payment do rise to the level of intention conduct with disregard to Plaintiffs' rights over their personal property (malice). Additionally, keeping and requiring Plaintiffs to pay money to access Plaintiffs' personal property would qualify as despicable conduct that subjects Plaintiffs to cruel and unjust hardship (oppression). Plaintiffs have pled sufficient facts to support punitive damages. The motion to strike is DENIED. <i>Moving party to give notice.</i>
7.	Sheddan v. Willhoit 25-1526158	Before the Court is a demurrer and motion to strike filed by defendants Nicola Willhoit ("Willhoit"), Baron Willhoit ("Baron") and The W Collection, Inc. ("W Collection") (collectively, Defendants) on the complaint of plaintiff Natalya Sheddan (Plaintiff). For the reasons set forth below, the demurrer is SUSTAINED with 20 days' leave to amend on the claims for violation of the Consumer Legal Remedies Act, <i>Civil Code section 1750 et. seq.</i> (CLRA), breach of implied warranty of habitability and public nuisance, but otherwise OVERRULED. The motion to strike is DENIED. I. Demurrer <i>A. Meet and Confer Requirement</i> Defendants have satisfied their obligation to meet and confer in accordance with <i>Code of Civil Procedure section 430.41, subdivision (a)</i> and have filed an appropriate declaration in accordance with <i>Code of Civil Procedure section 430.41, subdivision (a)(3)</i>. (ROA 29–Declaration of Oliver P. Lasley ¶¶ 2-4.) <i>B. Legal Standard</i> A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (<i>Code of Civ. Proc. § 430.10, subd. (e).</i>) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (<i>Crowley v. Katleman</i> (1994) 8 Cal. 4th 666, 672.) Facts appearing in exhibits attached to the complaint will also be accepted as true and, if contrary allegations appear in the complaint, will be given precedence. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal. App. 3d 593, 606.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) <i>C. Entire Complaint</i> Defendants argue the entire complaint fails because they were not parties to the lease and cannot be liable for its alleged breach. This